



CHAPTER cxxvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Edinburgh Suburban Electric Tramways. A.D. 1911.

[18th August 1911.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Edinburgh Suburban Electric Tramways Order Confirmation Act 1911. Short title.

A.D. 1911.

SCHEDULE.

EDINBURGH SUBURBAN ELECTRIC TRAMWAYS.

*Provisional Order to extend the time for the
construction of the tramways and street works authorised by
the Edinburgh Suburban Electric Tramways Order
1906 to revive the powers and extend the time for the
acquisition of lands in connexion therewith and
for other purposes.*

WHEREAS by the Edinburgh Suburban Electric Tramways Order 1906 (in this Order called "the Order of 1906") the Edinburgh Suburban Electric Tramways Company (in this Order called "the Company") was incorporated and authorised to construct the tramways therein described and to execute the street works and other works therein mentioned:

And whereas the time limited by the Order of 1906 for the compulsory acquisition of the lands required for the purposes of that Order expired on the twenty-first day of December one thousand nine hundred and nine and the time limited for the completion of the said tramways and street works will expire on the twenty-first day of December one thousand nine hundred and eleven:

And whereas it is expedient that the time limited by the Order of 1906 for the completion of the said tramways and street works should be extended and that the powers of acquiring compulsorily the lands required for the purposes of that Order should be revived and that the period within which such last-mentioned powers may be exercised should be extended as by this Order provided:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

[1 & 2 GEO. 5.] *Edinburgh Suburban Electric* [Ch. cxxvii.]
Tramways Order Confirmation Act, 1911.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Edinburgh Suburban Electric Tramways Order 1911 and the Order of 1906 and this Order may be cited together as the Edinburgh Suburban Electric Tramways Orders 1906 and 1911 This Order shall come into operation at the date of the passing of the Act confirming the same which date is herein-after referred to as "the commencement of this Order."

Short title
and com-
mencement
of Order.

2. The powers granted by the Order of 1906 for the compulsory purchase of lands for the purposes of that Order are hereby revived and extended and shall continue in force and may be exercised by the Company for a period of two years from the commencement of this Order and on the expiration of that period those powers shall cease.

Reviving
and extend-
ing time for
purchase of
lands.

3. The powers granted by the Order of 1906 for the construction of the tramways and street works authorised by the Order of 1906 are hereby extended and may be exercised by the Company for the period of two years from the twenty-first day of December one thousand nine hundred and eleven and section 15 (Period for completion of tramways and street works) of the Order of 1906 shall be read and construed as if the period limited by this Order for the completion of the tramways and street works had been the period limited by that Order for the completion thereof and sections 85 (Power to pay interest out of capital during construction) 86 (Tramways deposit fund not to be repaid except so far as tramways are opened) and 87 (Application of tramways deposit fund) of the Order of 1906 shall be read and construed as if the period by this Order limited for the completion of the said tramways and street works had been the period limited by the Order of 1906 for the completion thereof.

Extension of
time for com-
pletion of
tramways
and street
works.

If the said tramways and street works are not completed within the said period of two years then on the expiration of that period the powers for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

4. Subsection (1) of section 46 (For protection of Dalkeith and Bonnyrigg Corporations) of the Order of 1906 is hereby repealed.

Repeal of sub-
section (1) of
section 46 of
Order of 1906.

[Ch. cxxvii.] *Edinburgh Suburban Electric* [1 & 2 GEO. 5.]
Tramways Order Confirmation Act, 1911.

A.D. 1911. 5.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Company in connexion with the tramways authorised by the Order of 1906 and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

(a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:

(b) The Postmaster-General shall give to the Company not less than twenty-eight days notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided:

(c) Unless otherwise agreed between the Postmaster-General and the Company the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Company or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:

- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires. Any difference as to the conditions of attachment shall be determined as herein-after provided: A.D. 1911.
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair:
- (g) The Postmaster-General shall make good to the Company and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Company their officers or servants:
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Company and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Company or failing agreement determined as herein-after provided:
- (i) The Company shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and

[Ch. cxxvii.] *Edinburgh Suburban Electric* [1 & 2 GEO. 5.]
Tramways Order Confirmation Act, 1911.

A.D. 1911.

working of the tramways or by any accident arising thereon or by the authorised use by the Company of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Company their officers or servants:

(j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Company the value of the same Provided that if the Company or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Company from using their posts standards or brackets for the support of any of their electric wires and apparatus in connexion with their tramways or shall take away any existing right of the local authority of using the posts standards or brackets of the Company in connexion with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and the local authority in relation to the use of the posts standards or brackets by the Postmaster-General and the local authority respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression “the Company” includes their lessees;

The expression “telegraph” has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meanings as in the Telegraph Act 1878.

[1 & 2 GEO. 5.] *Edinburgh Suburban Electric* [Ch. cxxvii.]
Tramways Order Confirmation Act, 1911.

6. Nothing in this Order contained shall exempt the Com- A.D. 1911.
pany or their tramways from the provisions of any general Act Provision as
relating to tramways passed before or after the commencement to general
of this Order or from any future revision or alteration under Tramway
the authority of Parliament of the maximum fares rates or Acts.
charges authorised to be taken by the Company.

7. All costs charges and expenses of and incident to the Costs of
preparing for obtaining and passing of this Order and the Order.
confirming Act or otherwise in relation thereto shall be paid by
the Company.

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